

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased: _____

-----X
EDWARD GUILLEN,

Plaintiff designates
Bronx County as the place of trial

Plaintiff,

The basis of the venue is where the
tort arose and plaintiff resides

-against-

THE CITY OF NEW YORK, MICHAEL SMITH DET.
OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID
#942823, GERSON CABRERA P.O. OF THE 43 PCT.,
SHIELD #00479, TAX ID #948727, OTHER NEW
YORK CITY POLICE OFFICERS ON ARREST
#B16657539 WHOSE NAMES ARE NOT KNOWN
AT THIS TIME N/H/A JOHN/JANE DOE I-V, AS IT
PERTAINS TO THE INCIDENT THAT AROSE ON
OCTOBER 12, 2016 AND NO OTHER DATE,

SUMMONS

Plaintiff resides at

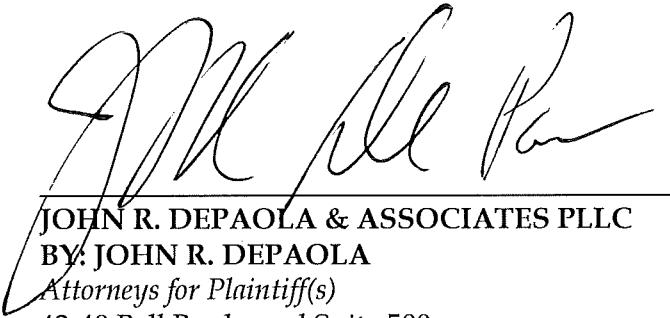
EDWARD GUILLEN
917 Ogden Avenue
Bronx, New York 10452

Defendants.

-----X
TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete) if this summons is not personally delivered to you within the State
of New York and in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
September 21, 2018


JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: JOHN R. DEPAOLA

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

MICHAEL SMITH DET. OF THE 44 DET. SQUAD
SHIELD #1922, TAX ID #942823
2 East 169th Street
Bronx, New York 10452

GERSON CABRERA P.O. OF THE 43 PCT.
SHIELD #00479, TAX ID #948727
900 Fteley Avenue
Bronx, New York 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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EDWARD GUILLEN,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, MICHAEL SMITH DET.
OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID
#942823, GERSON CABRERA P.O. OF THE 43 PCT.,
SHIELD #00479, TAX ID #948727, OTHER NEW
YORK CITY POLICE OFFICERS ON ARREST
#B16657539 WHOSE NAMES ARE NOT KNOWN
AT THIS TIME N/H/A JOHN/JANE DOE I-V, AS IT
PERTAINS TO THE INCIDENT THAT AROSE ON
OCTOBER 12, 2016 AND NO OTHER DATE,

Defendants.

-----X

EDWARD GUILLEN, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES

PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff EDWARD GUILLEN was a resident of New York County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 2nd day of January, 2018 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY

OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823, GERSON CABRERA P.O. OF THE 43 PCT., SHIELD #00479, TAX ID #948727, OTHER NEW YORK CITY POLICE OFFICERS ON ARREST #B16657539 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-V**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about October 12, 2016, at approximately 3:00 P.M., in the vicinity of a bodega near 162 Ogden Avenue, which the police claims occurred at approximately 3:38 P.M., in the vicinity of the northeast corner of Ogden Avenue and West 162nd Street, County of Bronx, State of New York the

Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff EDWARD GUILLEN, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about October 12, 2016, at approximately 3:00 P.M., in the vicinity of a bodega near 162 Ogden Avenue, which the police claims occurred at approximately 3:38 P.M., in the vicinity of the northeast corner of Ogden Avenue and West 162nd Street, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff EDWARD GUILLEN in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. On or about October 12, 2016, at approximately 3:00 P.M., in the vicinity of a bodega near 162 Ogden Avenue, which the police claims occurred at approximately 3:38 P.M., in the vicinity of the northeast corner of Ogden Avenue and West 162nd Street, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2016BX044616. The Plaintiff was thereafter held in custody over the course of two (2) days or approximately twenty-eight (28) hours until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this instant case, Plaintiff was walking out of a bodega when he was approached by two (2) officers. These officers forced him back into the store and told him to put his hands behind his back and arrested him without offering any explanation. The officer who signed the criminal court complaint against the Plaintiff was **MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823**, and/or along with **GERSON CABRERA P.O. OF THE 43 PCT., SHIELD #00479, TAX ID #948727** and those named as "JOHN/JANE DOE I-V" assisted in the investigation that led to the arrest of the Plaintiff. **MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823** was the arresting officer in this matter. **MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823**

claims he was informed by GERSON CABRERA P.O. OF THE 43 PCT., SHIELD #00479, TAX ID #948727 that he personally observed Plaintiff criminally involved in a drug transaction. Plaintiff was never involved in a drug transaction. GERSON CABRERA P.O. OF THE 43 PCT., SHIELD #00479, TAX ID #948727 provided false and/or incorrect information concerning these false/incorrect observations. Plaintiff was then falsely arrested, searched, seized and held in jail based on these false statements.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about October 12, 2016, at approximately 3:00 P.M., in the vicinity of a bodega near 162 Ogden Avenue, which the police claims occurred at approximately 3:38 P.M., in the vicinity of the northeast corner of Ogden Avenue and West 162nd Street, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's police jail. The Plaintiff was thereafter held in custody over the course of two (2) days or approximately twenty-eight (28) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this instant case,

Plaintiff was walking out of a bodega when he was approached by two (2) officers. These officers forced him back into the store and told him to put his hands behind his back and arrested him without offering any explanation. The officer who signed the criminal court complaint against the Plaintiff was **MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823**, and/or along with **GERSON CABRERA P.O. OF THE 43 PCT., SHIELD #00479, TAX ID #948727** and those named as "JOHN/JANE DOE I-V" assisted in the investigation that led to the arrest of the Plaintiff. **MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823** was the arresting officer in this matter. **MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823** claims he was informed by **GERSON CABRERA P.O. OF THE 43 PCT., SHIELD #00479, TAX ID #948727** that he personally observed Plaintiff criminally involved in a drug transaction. Plaintiff was never involved in a drug transaction. **GERSON CABRERA P.O. OF THE 43 PCT., SHIELD #00479, TAX ID #948727** provided false and/or incorrect information concerning these false/incorrect observations. Plaintiff was then unlawfully imprisoned, seized and searched based on these false statements.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about October 12, 2016 and from that time until the dismissal of charges on or about October 3, 2017 by the

Honorable B. Pitt presiding at Bronx County Criminal Court, Part FA,
Defendants THE CITY OF NEW YORK, MICHAEL SMITH DET. OF THE
44 DET. SQUAD, SHIELD #1922, TAX ID #942823, GERSON CABRERA
P.O. OF THE 43 PCT., SHIELD #00479, TAX ID #948727, OTHER NEW
YORK CITY POLICE OFFICERS ON ARREST #B16657539 WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-
V, deliberately and maliciously prosecuted Plaintiff, EDWARD GUILLEN
an innocent man without any probable cause whatsoever, by filing or
causing a criminal court complaint to be filed in the Criminal Court of the
City of New York, Bronx County, for the purpose of falsely accusing the
plaintiff of violations of the criminal laws of the State of New York.

16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2016BX044616 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges. Please note MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823

was the arresting officer who signed the criminal court complaint in large part based on the false information provided by his fellow police officer **GERSON CABRERA P.O. OF THE 43 PCT., SHIELD #00479, TAX ID #948727**, a police officer then assigned to the 44th police precinct.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants **MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823, GERSON CABRERA P.O. OF THE 43 PCT., SHIELD #00479, TAX ID #948727, OTHER NEW YORK CITY POLICE OFFICERS ON ARREST #B16657539 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-V**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
22. Plaintiff **EDWARD GUILLEN** is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New

York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

23. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
24. On or about October 12, 2016, the Defendants, armed police, while effectuating the seizure of the Plaintiff **EDWARD GUILLEN**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. In this instant case, Plaintiff was walking out of a bodega when he was approached by two (2) officers. These officers forced him back into the store and told him to put his hands behind his back and arrested him without offering any explanation. The officer who signed the criminal court complaint against the Plaintiff was **MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823**, and/or along with **GERSON CABRERA P.O. OF THE 43 PCT., SHIELD #00479, TAX ID #948727** and those named as "**JOHN/JANE DOE I-V**" assisted in the investigation that led to the arrest of the Plaintiff. **MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823** was the arresting officer in this matter. **MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823** claims he was informed by **GERSON CABRERA P.O. OF THE 43 PCT., SHIELD #00479,**

TAX ID #948727 that he personally observed Plaintiff criminally involved in a drug transaction. Plaintiff was never involved in a drug transaction. GERSON CABRERA P.O. NOW OF THE 43 PCT., SHIELD #00479, TAX ID #948727 and MICHAEL SMITH DET. OF THE 44 DET. SQUAD, SHIELD #1922, TAX ID #942823 provided false and/or incorrect information concerning these false/incorrect observations to the court and prosecution. Plaintiff was then falsely searched, seized and maliciously prosecuted based on these false statements. These officers grabbed the person of the Plaintiff and handcuffed him. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red, and were swollen. It should be noted at the time of his arrest, Plaintiff was a 35 year old male who had never been convicted of a crime. At scene of his arrest, Plaintiff was subjected to a pat down and at the 44th precinct he was subjected to a strip-search with a visual cavity inspection by these officers, Smith and Cabrera even though they had no legal cause to suspect he was secreting contraband in his person. Please note the Plaintiff maintains his innocence and vehemently denied he sold drugs to any individual, no contraband was found on him and he was merely acting in an innocuous fashion by leaving his mother's apartment to purchase a cigarette (loosey) at a bodega/deli and when he left the detectives approached him, pushed him back into the bodega/deli and arrested him. It should be noted his third search and second strip search with visual cavity inspection occurred at Bronx Central Booking again without legal cause by the officers working there. The defendant officers here took no steps to ensure that there prisoner was not

strip-searched with a cavity inspection at the 44th precinct and Bronx Central Booking as there was no legal cause to do so as he had committed no violations of the law.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment;
 - h. Freedom from loss of his liberty.
 - i. Freedom from being illegally strip-searched with a cavity inspection.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment and was deprived of his liberty.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest or search warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause nor should they strip-search an individual such as the Plaintiff herein unless they can cite facts to support legal cause to justify a strip-search with visual cavity inspection in that they saw or knew Plaintiff secreted contraband in or on his person.
30. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

31. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual cannot be strip-searched with a cavity inspection unless the police officer conducting the strip-search with visual cavity inspection have legal cause to conduct such a search based on articulable facts that an individual such as the Plaintiff herein has secreted contraband in or on his person. The Plaintiff states he was an innocent man who never engaged in a sale of narcotics as the defendants herein maintain. It should be further known no contraband was found on the Plaintiff at the time of his arrest or when he was strip-searched with a visual cavity inspection at the 44th precinct in Bronx, New York.
32. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

33. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "32" as it set forth at length herein.
34. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

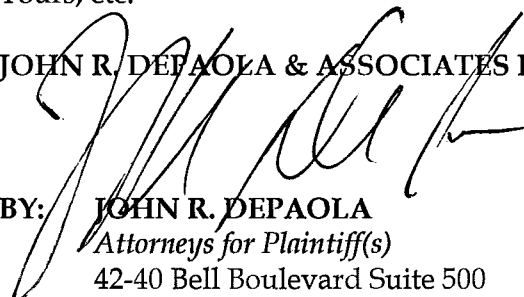
WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
September 21, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY:


JOHN R. DEPAOLA

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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EDWARD GUILLEN,

Plaintiff,

-against-

VERIFICATION

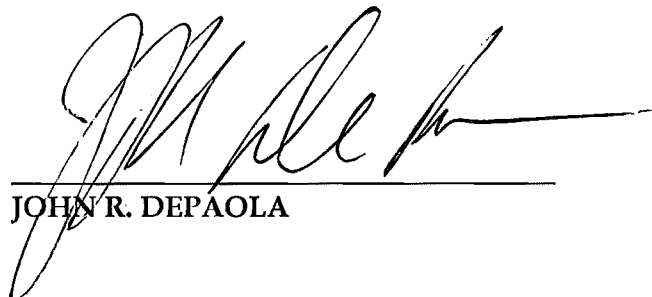
THE CITY OF NEW YORK, MICHAEL SMITH DET.
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Defendants.
-----X

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
September 21, 2018



JOHN R. DEPAOLA

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

EDWARD GUILLEN,

Plaintiff,

-against-

THE CITY OF NEW YORK, MICHAEL SMITH DET. OF THE 44 DET. SQUAD,
SHIELD #1922, TAX ID #942823, GERSON CABRERA P.O. OF THE 43 PCT.,
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OFFICERS ON ARREST #B16657539 WHOSE NAMES ARE NOT KNOWN AT
THIS TIME N/H/A JOHN/JANE DOE I-V, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON OCTOBER 12, 2016 AND NO OTHER DATE,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA, ESQ.
Attorney for Plaintiff
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for